

certain historical antecedents of the case-and-controversy doctrine. For example, Mr. Justice Frankfurter twice suggested that historical meaning could be imparted to the concepts of justiciability and case and controversy by reference to the practices of the courts of Westminster when the Constitution was adopted. *Joint Anti-Fascist Committee v. McGrath*, 341 U. S. 123, 150 (1951) (concurring opinion); *Coleman v. Miller*, 307 U. S. 433, 460 (1939) (separate opinion). However, the power of English judges to deliver advisory opinions was well established at the time the Constitution was drafted. 3 K. Davis, *Administrative Law Treatise* 127-128 (1958). And it is quite clear that "the oldest and most consistent thread in the federal law of justiciability is that the federal courts will not give advisory opinions." C. Wright, *Federal Courts* 34 (1963).¹⁴ Thus, the implicit policies embodied in Article III, and not history alone, impose the rule against advisory opinions on federal courts. When the federal judicial power is invoked to pass upon the validity of actions by the Legislative and Executive Branches of the Government, the rule against advisory opinions implements the separation of powers prescribed by the Constitution and confines federal courts to the role assigned them by Article III. See *Muskrat v. United States*, 219 U. S. 346 (1911); 3 H. Johnston, *Correspondence and Public Papers of John Jay* 486-489 (1891) (correspondence between Secretary of State Jefferson and Chief Justice Jay). However, the rule against advisory opinions also recognizes that such suits often "are not pressed before the Court with that clear concreteness provided when a question emerges precisely

¹⁴ The rule against advisory opinions was established as early as 1793, see 3 H. Johnston, *Correspondence and Public Papers of John Jay* 486-489 (1891), and the rule has been adhered to without deviation. See *United States v. Fruehauf*, 365 U. S. 146, 157 (1961), and cases cited therein.